

## **Demurrer**

### **1st, 7th, 8th, 9th, 12th and 14th affirmative defenses:**

These affirmative defenses are uncertain, ambiguous and unintelligible in light of the allegations and causes of action pled in Plaintiff's complaint. (See Code of Civ. Proc. § 430.20, subd. (b); *South Shore Land Co. v. Petersen* (1964) 226 Cal.App.2d 725, 732 [evaluation of an answer requires examination of the complaint].) The demurrer is SUSTAINED as to these affirmative defenses.

**2nd, 6th, 13th, 15th, 16th affirmative defenses:** The answer fails to state facts sufficient to constitute these affirmative defenses and does not give fair notice of the issues to Plaintiff. (See Code of Civ. Proc. § 430.20, subd. (a); *In re Quantification Settlement Agreement Cases* (2011) 201 Cal.App.4th 758, 812-13 [standard]; *Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 549-50.) The demurrer is SUSTAINED as to these affirmative defenses.

**3rd, 4th, 10th, 11th and 17th affirmative defenses:** While these affirmative defenses do not assert any new matter and merely negate the elements of Plaintiff's claims, Plaintiff fails to explain why or how these allegations prejudice Plaintiff. (See Code of Civ. Proc. § 452 [allegations in pleading are liberally construed], § 475 [minor pleading defects that do not affect the substantial rights of the parties are ignored].) The demurrer is OVERRULED as to these affirmative defenses.

**5th affirmative defense:** Defendants identify the applicable code sections but do not identify the subdivisions. (See Code of Civ. Proc. § 458.) The demurrer is SUSTAINED as to this affirmative defense.

**18th, 19th, 20th and 21st affirmative defenses:** These affirmative defenses are appropriate in light of the allegations and causes of action pled by Plaintiff and give fair notice of the issues to Plaintiff. (See Code of Civ. Proc. § 430.20, subd. (a); *South Shore Land Co. v. Petersen, supra*, 226 Cal.App.2d at 732; *Doe v. City of Los Angeles, supra*, 42

Cal.4th at 549-50.) The demurrer is OVERRULED as to these affirmative defenses.

**Motion to Strike**

Reservation of rights language: This language is mere surplusage, but Plaintiff fails to explain why or how these allegations prejudice Plaintiff. (See Code of Civ. Proc. §§ 436, 452, 475.) The motion is DENIED as to this portion of the answer.

Prayer for attorney fees and expert witness fees:

“Affirmative relief may not be claimed in the answer.”  
(Code of Civ. Proc. § 431.30, subd. (c).) Entitlement to attorney fees and/or expert witness fees may be claimed post-judgment. (Cal. Rules of Court, rules 3.1700, 3.1702.)  
The motion is GRANTED as to the prayer for relief.

Plaintiff shall give notice.